



## COUNTY OF SONOMA

575 ADMINISTRATION  
DRIVE, ROOM 102A  
SANTA ROSA, CA 95403

### SUMMARY REPORT

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**Agenda Date:** 5/14/2019

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**To:** Board of Supervisors

**Department or Agency Name(s):** Transportation and Public Works

**Staff Name and Phone Number:** Johannes J. Hoevertsz 707-565-2231

**Vote Requirement:** Majority

**Supervisorial District(s):** All

**Title:**

FY 2019-20 ADA Paratransit Services Agreement

**Recommended Actions:**

Approve and authorize Chair to execute an Agreement with Sonoma County Volunteer Center for Countywide Americans with Disabilities Act Paratransit Services for the period of July 1, 2019 through June 30, 2020, in an amount not to exceed \$2,435,758. □

**Executive Summary:**

As a fixed-route public transit operator, Sonoma County Transit is required to provide complementary Americans with Disabilities Act (ADA) paratransit service within ¾ mile of all its routes during the same days and hours as its fixed-route service operates. To meet federal Americans with Disabilities Act requirements, all paratransit trip requests, made by eligible clients, must be provided regardless of trip purpose, cost or number of trips taken within any period of time.

While FY 2018-19 paratransit ridership is projected to be within 1% of FY 2017-18's ridership, demand for ADA paratransit service has grown over the past six years with a projected 53% increase in paratransit trips taken when comparing projected FY 2018-19 (59,800 projected) with 2012-13 (39,111).

Paratransit usage is cyclical and after many years of increases, ridership growth has slowed. Some reasons for this change include rider's age, the ability to no longer use the service and the lingering effects of the 2017 wildfires that resulted in relocation of paratransit users to homes outside the County or outside Sonoma County Paratransit's service area.

This action renews the County's agreement with the Sonoma County Volunteer Center to provide countywide (ADA)-compliant paratransit services. Under this agreement, the Volunteer Center will continue to serve as Sonoma County Transit's ADA paratransit services provider through FY 2019-20, under the name of "Sonoma County Paratransit". □

**Discussion:**

The Volunteer Center has provided Americans with Disabilities Act paratransit service, on an annual basis, for Sonoma County since 2002. Prior to that time, the Volunteer Center provided general public dial-a-ride service

for both Sonoma County and the City of Santa Rosa.

Under the Americans with Disabilities Act and its implementing regulations, fixed-route transit operators are required to provide complementary paratransit service within  $\frac{3}{4}$  of a mile of their fixed-route service during the same hours and days that fixed-route services are provided. All trip requests, made by eligible passengers, must be met regardless of their trip purpose. Operators are required to provide, at a minimum, all next-day requested trips.

The Americans with Disabilities Act requires transit operators to provide a sufficient level of paratransit service such that no eligible passenger is denied paratransit service due to capacity limitations. Transit operators that do not meet the required “no-denial” level of service jeopardize their federal funding eligibility and expose themselves to potential legal liability.

Within Sonoma County, there are approximately 4,500 individuals that have qualified and signed up for paratransit services. For many of these individuals, the services provided under this agreement are their sole access to on-going medical care, as well as, social activities, shopping and educational opportunities. It is projected that Sonoma County Paratransit will provide 61,900 paratransit passenger trips during fiscal year 2019-20.

Sonoma County Paratransit operates with a fleet of 30 vehicles including: 20 minibuses, 4 accessible minivans, and 6 sedans. Six new vehicles will replace retiring vehicles in December. Vehicles are retired in accordance with Federal guidelines regarding miles and years in service.

The proposed FY 2019-20 agreement permits up to a 6.7% increase in paid service hours over the Volunteer Center’s FY 2018-19 agreement, should passenger trip demand warrant. A total of 64,064 paid driver hours (wheelchair accessible fleets) are budgeted, in addition to 4,500 volunteer driver hours (sedan fleet).

The proposed agreement provides for a maximum subsidy of \$2,435,758, reflecting a 4.4% increase over FY 2018-19’s agreement maximum of \$2,333,292. This is largely attributed to increased service hours and insurance costs associated with the new vehicles noted above. Sonoma County’s subsidy under this agreement compensates the Volunteer Center for its operating deficit. The operating deficit is the cost of services provided less passenger fares.

It should be noted that the Volunteer Center provides volunteer drivers to the County at no cost to support this service. Based on the Volunteer Center’s hourly rate, the annualized value of this volunteer service for FY 2019-20 is projected at \$109,035. Due to their scheduling flexibility, the Volunteer Center’s use of volunteer drivers has been a key contributor to achieving and maintaining a “no-denial” level of service. The ability to “right-size” the level of service each year due to changes in funding and/or passenger demand is a benefit of utilizing the Volunteer Center for this service.

The Volunteer Center is the preferred vendor based on their non-profit status, experience and that their use of volunteer drivers reduces the County’s overall operating costs and provides the back-up resources necessary to maintain the federally-required “no-denial” level of Americans with Disabilities Act paratransit service.

County Purchasing has reviewed this request and concurs with the department’s recommended action.

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**Prior Board Actions:**

5/08/2018 - Board approved agreement with Volunteer Center for FY 2018-19 Americans with Disabilities Act Paratransit services in the amount of \$2,333,292.

5/23/17 - Board approved agreement with Volunteer Center for FY 2017-18 Americans with Disabilities Act Paratransit Services in an amount not to exceed \$2,207,262.

**FISCAL SUMMARY**

| <b>Expenditures</b>                | <b>FY 18-19<br/>Adopted</b> | <b>FY19-20<br/>Projected</b> | <b>FY 20-21<br/>Projected</b> |
|------------------------------------|-----------------------------|------------------------------|-------------------------------|
| Budgeted Expenses                  |                             | \$2,435,758                  |                               |
| Additional Appropriation Requested |                             |                              |                               |
| <b>Total Expenditures</b>          |                             | <b>\$2,435,758</b>           |                               |
| <b>Funding Sources</b>             |                             |                              |                               |
| General Fund/WA GF                 |                             |                              |                               |
| State- TDA/STA                     |                             | \$1,958,066                  |                               |
| Other- Measure M                   |                             | 477,692                      |                               |
| Use of Fund Balance                |                             |                              |                               |
| Contingencies                      |                             |                              |                               |
| <b>Total Sources</b>               |                             | <b>\$2,435,758</b>           |                               |

**Narrative Explanation of Fiscal Impacts:**

Funding for the FY 2019-20 agreement was included in the recommended FY 2019-20 Transit Division Recommended Budget and is consistent with Sonoma County Transit's FY 2019-20 annual TDA/STA funding claim with the Metropolitan Transportation Commission.

| <b>Staffing Impacts:</b>        |                                          |                               |                               |
|---------------------------------|------------------------------------------|-------------------------------|-------------------------------|
| <b>Position Title (Payroll)</b> | <b>Monthly Salary Range (A - I Step)</b> | <b>Additions<br/>(number)</b> | <b>Deletions<br/>(number)</b> |
|                                 |                                          |                               |                               |
|                                 |                                          |                               |                               |
|                                 |                                          |                               |                               |

**Narrative Explanation of Staffing Impacts (If Required):**

None

**Attachments:**

Agreement

**Related Items "On File" with the Clerk of the Board:**

None